

SenaMUN V

Human Rights Council



Serviço De Aprendizagem Comercial
Senac | Ensino Médio Técnico

Co-Chair
Enzo Aguiar

Head-Chair
David Campora

Co-Chair
Luana Fugi

Table of Contents

Table of Contents	2
Welcome Letter	3
Human Rights Council Introduction	4
Addressing the lack of safety and protection for transgender people on a global level	5
Guiding Questions	5
Background Information	6
Historical Background	7
Past UN actions	8
Current Situation	9
Major Positions	10
Timeline of Relevant Events	12
List of Countries	14
Bibliography	15

Welcome Letter

Esteemed Delegates,

The Dais of the Human Rights Council sincerely welcomes you all to SENAMUN V. We, David Campora, Enzo Aguiar, and Luana Fugi, are truly honored to be the chairs of the Human Rights Council and look forward to meeting all of you and witnessing the greatness that you are capable of.

Through the lens by which we see the Model United Nations scene, it is expected that all the delegates uphold respect and diplomacy over any minor issue, always aiming for mutual growth and cooperation. The participation of each delegate contributes to building a more diverse environment and elevating this experience to its full potential. Once this is said, we urge the importance of the use of parliamentary procedure to ensure equality in opportunities and to maintain the diplomatic character of this fruitful debate.

This study guide explores the topic through numerous perspectives and ponders the history and circumstances that surround the stances of all the States present in this council. The topic approached is one of the most polemic surrounding the human rights field, and this must be treated with exceptional respect and carefulness, as numerous discourses may cross the lines of ethics. It is therefore understood that to build a coherent narrative on international discussions around the theme, delegates must place their personal viewpoints aside and argue passionately in their delegations' shoes.

As chairs, we are going to be here to assist you throughout this journey. So if you would like assistance of any sort before and during the conference, from anxiety-related issues to diplomatic doubts to special conditions, please don't hesitate to reach out. Once again, we are thrilled to be chairing this committee and enthusiastically anticipate meeting you!

Warmly,

David Campora (davidcampora23@gmail.com);

Enzo Aguiar (enzoaguiarsantosnunes@gmail.com);

Luana Fugi (luanafugi@gmail.com).

Human Rights Council Introduction



(The 50th Regular Session of the Human Rights Council in Geneva, 13 June to 8 July 2022)

In 1945, 51 countries gathered at the San Francisco Conference to establish the United Nations, with the primary goal of preventing the decisions of the past, promoting peace and international cooperation, and ensuring respect for human rights.

The Human Rights Council is an intergovernmental body within the United Nations system, responsible for strengthening the promotion and protection of human rights around the globe. Addressing human rights violations and making recommendations on them.

It meets at the United Nations Office at Geneva and is made up of 47 Member States. The council meets at least three times a year to give voice to any humanitarian situation in their country, assist refugees, stateless individuals, and communities forcibly displaced.

Its mission has since broadened to encompass the protection of all human rights issues worldwide.

Addressing the lack of safety and protection for transgender people on a global level.

Guiding Questions:

- 1) How has the country historically dealt with the recognition and rights of transgender individuals?
- 2) Which other nations present on this committee share positions similar to those of the delegation represented?
- 3) What role has the state played in previous international decisions?
- 4) How have external entities influenced the nation's stance throughout the decades?
- 5) What were the most important internal movements dedicated to promoting the rights of transgender people?
- 6) How do transgender movements arise, and what are the challenges faced by them internally and externally?



Transgender rights supporters rally outside of the Supreme Court in Washington, DC, US, December 4, 2024. © 2024 Jose Luis Magana/AP Photo

Background Information

Transgender is an umbrella term used to describe people whose gender identification is different from the one assigned at birth. For over a century, transgender people have been facing a lack of their own rights. Facing abuses including pathologization, absence of legal recognition of gender identity, severe discrimination, and ruthless violence around the world.

The transgender community is caught in a spiral of exclusion and marginalization, including rejection at school or by their own family, being pushed out onto the streets, and being denied access to employment. The community is particularly vulnerable when their name and sex details in official documents do not match their own identity or expression, especially in countries where being LGBTQIAPN+ is illegal.

For decades, being transgender was classified under "Mental and Behavioural Disorders" by the World Health Organization (WHO). It was only on May 29th, 2019, with the adoption of the 11th revision of the International Classification of Diseases (ICD-11), that the institution officially stopped classifying transgender identities as mental disorders.

According to a Williams Institute study in 2024 at UCLA School of Law, 322 transgender and nonbinary people have been facing a lack of protection of their own rights only in Los Angeles. 26% reported experiencing verbal harassment, physical attacks, or unwanted sexual contact at work within the last year because of their transgender or nonbinary identity. Moreover, since 2009, the TGEU's monitoring has recorded more than 5300 murders worldwide, with 281 happening by 2025.

Trans visibility, or the lack of it, has an important significance and can directly influence how a country treats its LGBTQIAPN+ community. Being part of the LGBTQIAPN+ community is still a crime in approximately 70 countries around the world, and when it comes to the trans population, the lack of statistics makes it difficult to analyze the situation.

In the past years, it is evident that the LGBTQIAPN+ community has been taking significant steps in securing their rights, embracing better access to essential healthcare, and increasing protections against discrimination.

The United Nations has affirmed the right of trans persons to legal recognition of their gender identity and a change of gender in official documents, including birth certificates, without being subjected to onerous and abusive requirements. After thousands of years, the humanitarian crisis around the lack of protection for trans

people on a global level is still the topic that affects the trans community worldwide, threatening their lives and their ability to address everyday situations.

Historical Background

General Global Movements and Approaches

For centuries, adverse gender self-identifications have been considered mental illnesses and have occasioned multiple repressions. Traditional beliefs shaped violent policies against transgender people until the early twentieth century.

During the interbellum, local initiatives gained popular support, sometimes granting certain institutionally recognized people the right to dress differently from their birth-assigned gender and even to change their names to better fit their identity. In parallel, advancements in the United Kingdom led to the beginning of the use of hormones to modify phenotypical traits, and studies for surgeries such as orchiectomies, penectomies, vaginoplasties, and mastectomies began to appear in Europe. However, the influence of traditional ideologies provoked by Hitler's rise to power shifted the scenario.

Nazi policies sentenced individuals within the transgender spectrum to imprisonment in concentration camps, discriminating by forcing them to wear pink triangle patches on their chests, as did any other member of the LGBTQIAPN+ community. Once transitional and war periods were often driven by uncertainty, conservative movements were not restricted to Germany, nor to the Axis, but they spread throughout the entire globe. Emerging from these ideologies, States once again considered homosexuality or non-cisgenderism as extreme medical cases and implemented violent, repressive policies. Exemplifying these regulations, the French government punished dressing differently from one's biological gender with up to 3 years of imprisonment; the Soviet officers retaliated homosexuality (as a vague concept that also encompasses transgender people) with up to eight years of imprisonment, which would most likely include forced labor.

Decades of state-sponsored harassment culminated in strong counterculture movements that started with LGBTQIAPN+ pushback in their safe spaces and evolved into massive actions. One of the most relevant examples is the 1969 Stonewall Riots in New York City. These cases played a critical role in showcasing the reality of the transgender community and shifted the popular view in favor of the cause. Generally speaking, the aforementioned come to be true, but the contexts found in other parts of the globe are not completely aligned with them.

The colonial legacy left in Latin American and African countries, combined with the Cold War-driven conservative dictatorships, resulted in the spread of vague

policies that criminalized behaviors related to transgender individuals (e.g., *cross-dressing*). These norms commonly took advantage of social discrimination to enforce disproportional punishment. Other possible outcomes for the so-called “trans-related” actions would be hospitalization in mental health facilities, once the self-identification with a non-biological gender was portrayed as GID (Gender Identity Disorder). Additionally, the undeveloped treatments for mental illnesses during that period were harmful and dangerous, often not scientifically proven to be efficient or effective.

Alongside that, it is fundamental to acknowledge that the cultural characteristics of several ethnic groups in Africa suffered additional repression, since their beliefs and customs included non-traditional gender representations.

As the decades followed, two primary catalysts laid the groundwork for the first organized movements advocating for institutionalized recognition of trans rights in the late 1900s. The first one is the AIDS (Acquired Immunodeficiency Syndrome) crisis around 1990. This was an epidemic effect of the spread of HIV, which does not cause critical damage on its own, but instead causes a deficiency in the immune system. The emergency generalized scenario, taken in conjunction with the lack of support from public institutions, culminated in the need to create assistance networks among the LGBT+ community, which would later give rise to the first organized groups in favor of their rights.

The second fundamental factor for the unification of the transgender community was the creation of the word “transgender” itself, a general umbrella term that encompassed drag queens, transsexuals, and gender-nonconforming individuals. This single vocabulary helped the community to express their demands organizedly, ending the previously scattered, powerless movements, and recognizing their struggles as a single one. The term was introduced in the 1992 book “*Transgender Liberation*” by Leslie Feinberg in the United States.

Coming towards the year 2000, the rise of the internet facilitated communication between transgender activists around the world, crossing previous media barriers and creating a more structured group. Consequently, the cause became more relevant, and political entities started drafting proposals related to the rights and recognition of transgender individuals. The new common perception of the importance carried by this community opened eyes and minds for political shifts based on either interest or empathy. In this field, it is essential to mention distinguished government-unrelated institutions that made lobbies possible and entertained the transgender agenda in global assemblies such as the United Nations

or the World Health Organization. The most important one is the GATE (Global Action for Trans Equality), an international advocacy organization that advances human rights, justice, and equality for trans, gender diverse, and intersex communities worldwide. Another advancement within NGOs was seen when the International Lesbian and Gay Association (ILGA), a politically recognized institution, partially changed its name and purpose to also include transgender people.

Although the community became more recognized, it was still not significant enough to be properly respected politically; instead, their lack of recognition represented a threat to global health stability. Thus, already established health care systems understood that undermining transgender groups was inefficient to combat the spread of the Human Immunodeficiency Virus (HIV), since they were some of the most severely affected ones. This reason motivated these organizations to recognize and invest in these communities' well-being, not voluntarily, but to restrict the epidemic in general. The funds and infrastructure received by transgender entities were not just used to promote health among them but to organize them politically, turning health clinics into human rights hubs.

Despite the challenges faced within Northern established political systems, in the recently decolonized Global South, oppressed cultural beliefs, which included non-binary or non-cisgender figures, became part of movements against the legacy left by Europeans. The regional political frameworks interpreted the fight for transgender rights not as a new cause, but as a manner of representing the past and detaching themselves from the colonizer. The Constitution of the Republic of South Africa Act 200 of 1993 exemplifies this phenomenon perfectly, not just addressing apartheid, but also other smaller causes, such as gender identity, which is featured in the demand for equity and non-discrimination.

In the fight for their rights, advocacy entities pressured the international community to form a generally recognized unified standard regarding the rights of LGBTQIAPN+. Once the topic was considered "too sensitive" to be directly approached in official global rooms, human rights experts wrote the Yogyakarta Principles (2006). Though it is considered a type of "soft law" as no State has officially signed it, it is considered valid and relevant, being often used to bypass judges' or policy-makers' excuse of unprecedentedness around the gender identity field, and LGBTQIAPN+ in general.

As years have passed, the transgender community still lacks an international binding protection. South American and African States led movements within the United Nations to create a universal framework for maintaining safety among

non-cisgender groups. These actions caused the approval of some of the most important documents for the global recognition of transgender communities: the UNHRC Resolution 17/19 (2011) and the SOGI Mandate (2016).

After all the aforementioned advancements, local courts and conservative policymakers could still hospitalize people for not identifying as their biological gender, once the WHO considered it a psychological disorder. However, after popular and political pressure, the organization presented in 2019 the 11th revision of the International Classification of Diseases, which did not present “gender incongruence”, officially depathologizing it.

Regional Actions and Contexts

In different parts of the globe, different cultures and historical pathways led to multiple perspectives, and this sub-section intends to uncover the disparity in viewpoints regarding the recognition and rights of transgender individuals.

Despite non-cisgender identities being part of religious beliefs and regional customs in East Asia, the arrival of medical perspectives from the West in the 20th century changed the way Asian political institutions approached transgender people. This movement was enhanced by the extremely severe stance of the USSR in the cause, one that interpreted adverse gender self-identifications as extreme mental disorder contexts. This influence led to a strict contemporary approach to the subject in Central Asia. Conversely, the East's struggles are more similar to those found in the West, such as local representations advocating for changes in the legislature and constant oppression.

On the Other hand, African States have historically adopted third-gender and gender-variant people as part of their culture. However, during imperialism, colonizers portrayed it as uncivilized and established laws against “unnatural offenses.” The legacy left by the Europeans shaped how African political systems approach the topic, making it much more closely tied to movements that seek to distance the country from its colonial past than to direct gender debate. This historical scenario created popular misconceptions in the people’s minds, making some argue that the transgender discussion is an imported European concern, when it is actually the exact opposite.

Similarly to Africa, native South Americans used to recognize multiple gender definitions, which also had to be rebuilt through Western standards of civilization. During the late 20th century, however, a distinct political category emerged not

using the medical term “transgender” but instead the term “*travesti*”. These groups were mainly composed of trans working-class women and advocated for decades for their rights; they were located primarily in Argentina, Chile, and Brazil.

Past UN Actions

Since 2011, the United Nations Human Rights Council has been taking significant steps towards the protection of trans people through a series of resolutions to combat violence and discrimination based on Gender Identity.

Resolution 17/19 – Human Rights Council

June 2011 – Human rights, sexual orientation, and gender identity

Resolution 17/19 was requested by the United Nations Office of the High Commissioner for Human Rights (OHCHR) to prepare a report on issues, such as acts of violence and discrimination against trans people around the world. This report outlined the problems faced by LGBTQIAPN+ people and reiterated each State's commitment to protect the rights of all citizens. The report recommends that all States investigate serious acts of violence, repeal laws criminalizing homosexuality, and enact legislation to prevent discrimination based on sexual orientation and gender identity. This resolution, presented by South Africa along with Brazil and 39 additional co-sponsors from all regions of the world, was passed by a vote of 23 in favor, 19 against, and 3 abstentions.

Resolution 27/32 – Human Rights Council

September 2014 – Human rights, sexual orientation, and gender identity

This resolution was requested for the OHCHR to update the report solicited in 2011 to entrust a study documenting discriminatory laws and practices and acts of violence against individuals based on their sexual orientation and gender identity, with a view to sharing good practices and ways to overcome violence and discrimination.

Resolution 32/2 – Human Rights Council

June 2016 – Protection against violence and discrimination based on sexual orientation and gender identity

It formally established the mandate of the Independent Expert on Protection against Violence and Discrimination based on Sexual Orientation and Gender Identity. That is mandated to explore ways to protect better persons who suffer from violence and discrimination based on their sexual orientation or gender identity such

as assessing implementation of human rights standards, identifying best practices and gaps, raising awareness of these issues, identifying and addressing the root causes of violence and discrimination, and engaging in dialogue and consulting with States and other relevant stakeholders to foster the protection of LGBTQIAPN+.

Resolution 41/18 – Human Rights Council

July 2019 – Mandate of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity

Called upon all governments to cooperate with the Independent Expert by supplying all necessary information requested by the mandate holder, and responding favourably to the requests of the Independent Expert to visit their countries to fulfil the mandate more effectively. In addition to requesting the Independent Expert to continue to report annually on the implementation of the mandate to the Human Rights Council and the General Assembly.

Resolution 50/10 – Human Rights Council

July 2022 – Mandate of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity

This resolution extended the mandate of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity for a period of three years. Also requested states to amend or repeal laws and policies and take effective measures to prevent, investigate, and prosecute acts of violence and discrimination based on those grounds, both online and offline.

Resolution 55/14 – Human Rights Council

April 2024 – Combating discrimination, violence, and harmful practices against intersex people

Adopted in April 2024 to combat discrimination, violence, and harmful practices against intersex persons. It is the first historic United Nations document to define the term "intersex" and to recognize unnecessary medical interventions on individuals with innate sex variations as harmful.

In 2024, the UN Secretariat adopted a strategy on the protection from violence and discrimination of LGBTQIAPN+ persons. The strategy reaffirms internal commitments to providing a safe and supportive environment, irrespective of

gender identity, gender expression, sexual orientation, or sex characteristics, to advance equal opportunities, non-discrimination, zero tolerance for prohibited conduct, respect for dignity and rights, and effective participation. It also reaffirms external commitments, in line with respective UN mandates, international law, norms and standards, and other globally agreed commitments.

Resolution 59/5 – Human Rights Council

July 2025 – Mandate of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity

The last resolution passed by the Human Rights Council, which addresses transgender persons, recalled all the past resolutions and also requested the same support around transgender persons and the LGBTQIAPN+ community by requesting the Independent Expert to continue to report annually on the implementation of the mandate to the Human Rights Council once more and deciding to extend the mandate of the Independent Expert for the next three years.

Over the last few years, the steps taken by the Human Rights Council to protect the transgender community have been extremely important and relevant, especially for strengthening the first resolutions so that all the rights would be ensured for the community, and the world could see actual progress ahead of the LGBTQIAPN+ community's rights and protection.

Current Situation

Ongoing policies

In November 2025, 574 LGBTQIAPN+ activists, civil society leaders, diplomats, donors, and allies from over 70 countries gathered for Outsummit 2025 – Outright International's flagship global conference. To address escalating attacks against the LGBTQIAPN+ people's human rights worldwide. While legal recognition with no abusive requirements has been reaffirmed by UN human rights experts, global continuous progress and even stability vary drastically. However, legal recognition alone does not guarantee safety, as any transgender person continues to face discrimination in employment, healthcare, housing, and education, overlooking the actual efficiency of certain measures. Organizations such as, but not limited to, the OHCHR continue to seek socio-cultural inclusion and protections against prejudice.

Today, in the United Kingdom, multiple countries are once again fighting for the abolition of single-sex spaces, specifically toilets. Similar debates have emerged in numerous States, demonstrating the growing polarization surrounding transgender rights and the challenges governments face when balancing inclusion, safety, and human rights considerations. Many argue that the purpose and value of those spaces for women are at risk of being eclipsed by volatile changes that significantly impact safety and security. Whilst others, in contrast, argue that the accessibility change provides a broad inclusivity status regarding the comprehensive measures, which take into account those who do not identify with their birth gender. As a result, significant disparities remain in the level of safety and protection afforded to transgender individuals across the world, making international cooperation and policy development an increasingly important measure.

New Zealand is often cited as an example of how anti-discrimination legislation can strengthen protections for transgender individuals and promote social inclusion. The Human Rights Act 1993 is an exemplary and almost pioneering piece

of anti-discrimination legislation. Whereas the Act was initially founded to address communities from unfair treatment across multiple public sectors, its particular relationship to transgender people's safety and rights is implicit. Relying on a combination of legal interpretation and subsequent legal amendments passed later on in history. This framework has contributed to greater legal protections against discrimination in various areas. Nevertheless, legal protections alone do not

eliminate or completely address prejudice and social discrimination, which remain challenges even in countries with advanced legal and parliamentary measures.

Challenges for implementation

A further challenge faced by transgender people concerns the recognition of their gender identity within official documentation systems. In various countries, legal procedures for changing gender markers on passports, birth certificates, and other identification documentation remain complex, inaccessible, or unavailable. The lack of accurate documentation creates practical difficulties in travel, voting, banking, accessing public services, and interactions with law enforcement, which affect the ability of transgender individuals to fully engage in society.

Particular concerns also arise regarding transgender refugees, asylum seekers, and displaced persons. Individuals fleeing persecution based on their gender identity often encounter additional vulnerabilities during migration processes, including difficulties accessing shelters, legal assistance, healthcare, and protection from violence. International organizations have increasingly emphasized the need for specialized safeguards to ensure the protection of transgender persons within humanitarian and displacement contexts.

Furthermore, the ongoing expansion of social media has generated multiple specific challenges for the LGBTQIAPN+ community, most specifically for transgender individuals. Particularly through targeted harassment and hate speech on major online platforms, which aim to denigrate and dehumanize such groups. Many transgender users report experiencing threats, abusive messages, and coordinated campaigns aimed at discouraging their participation in digital spaces. These experiences can negatively affect mental well-being and limit access to online communities that provide support and information. As a result, the effectiveness of platform moderation policies and measures to combat online abuse has become an increasingly important topic in discussions surrounding transgender rights and safety.

Despite several measures being taken throughout the course of history in an attempt to humanize and provide the needed safety for transgender people, the discrimination remains ongoing. According to PubMed, a 2026 global meta-analysis covering 65,608 transgender and gender-diverse adults found that 64.2% reported experiencing physical or sexual violence during their whole lifetime. The same study indicates that 35.9 experienced physical violence and 32.7 experienced sexual violence. Transgender people around the world continue to face inhumane struggles

that offend the human conscience. However, it has begun to be a highly polarized topic, with multiple countries such as but not limited to: Pakistan (Transgender Persons (Protection of Rights) Act of 2018), New Zealand (Protected under the Human Rights Act (1993) and the New Zealand Bill of Rights Act (1990), Cuba (Law No. 166 (the Civil Registry Law)(Ministry of Public Health in Resolution No. 126)(Article 42 of the 2019 Constitution). Regardless of increasing legal recognition in several countries, discrimination persists in multiple forms; In healthcare, education, employment, and public life, highlighting the need for stronger international protections and enforcement mechanisms.

Major Positions

Islamic Republic of Pakistan 	Despite being a conservative nation, Pakistan has passed and put into practice some of the world's most progressive trans rights legislation: the 2009 Supreme Court Ruling, the 2018 Transgender Persons Act, State funded Education. Alongside facing severe challenges regarding violence and the erosion of these legal protections. Transgender men and AFAB gender-diverse individuals (non-binary individuals who are assigned female at birth) claim to remain invisible, stating that discrimination and violence against them are under-reported. The posed legal protections remain with gaps between legal safeguards and lived realities. Citizens constantly report the need for mainstreaming. Countering the previous advancements, in 2023, the Federal Shariat Court declared the right to "self-perceived" gender identification un-Islamic. The court emphasized that gender must be determined biologically, going against previous legal protections and creating an environment of constant uncertainty.
French Republic 	France has been at the forefront of defending the rights of LGBTQIAPN+ people. France has been taking significant steps toward the protection of the transgender community, including by making the EU the world's most protective space for LGBTQIAPN+ people, such as by combating violence and discrimination, providing legal protection for same-sex couples, banning conversion therapies, and recognizing same-sex parentage across countries. In 2008, France launched the first campaign for the universal decriminalization of homosexuality, with a declaration at the United Nations General Assembly signed by 66 countries. The French diplomatic network remains committed, and a fund has been created to support NGOs working on these issues worldwide.

People's Republic of China



Transgender rights are handled through a rigid, highly bureaucratized medical model that permits legal recognition but imposes exceptionally strict, gatekept requirements. The medicalized path to legal recognition includes: Mandatory surgery is needed to change a gender marker on official national identity cards (GAS); strict prerequisites, which include obtaining medical authorization, which is difficult; furthermore, an official psychiatric diagnosis of "transsexualism" or gender dysphoria, amongst multiple other prerequisites, must be presented. Alongside other prerequisites.

The state has slowly expanded specialized medical care, such as, but not limited to, the establishment of youth gender clinics at institutions like the Fudan University Children's Hospital to manage adolescents' transitions safely. Digital safety and public advocacy remain highly compromised. Authorities use strict cybersecurity laws to erase queer content, block support groups, and ban LGBTQIAPN+ dating applications from digital stores.

Republic of Cuba



Evolving from historical persecution into some of the most progressive legal frameworks in Latin America, Cuba handles transgender people's rights through an authoritarian, top-down state model (the contrary of a grassroots model). The rights of trans people are embedded directly into its constitutional and medical infrastructures, though bureaucratic control remains strict.

The swift advancements in legal gender recognition have been widely praised. The new civil registry law, approved by the National Assembly, states that a sweeping reform has to take full effect to eliminate the requirement of genital or gender affirming surgery to update gender markers on birth certificates and national identity cards. Maintaining a status of swift action-taking and prompt decision-making.

Russian Federation 	The transgender community has been facing a situation of extreme vulnerability and a lack of their own rights and safety in Russia. With laws prohibiting any medical intervention aimed at gender transition, including sex reassignment surgery and hormone therapy, and with the Russian Supreme Court having declared the so-called “international LGBT movement” an extremist organization. In practice, this has made any activism or public expression illegal, subjecting individuals to prison sentences. The situation had already been worsening since the “LGBT propaganda” law was initially passed in 2013 and tightened in 2022 to prohibit any positive or neutral mention of non-cisgender identities for all ages.
Republic of South Africa 	In contrast to other countries, South Africa presents a striking social contradiction: despite possessing some of the most progressive constitutional protections globally, transgender individuals still face high rates of social stigma, systemic healthcare barriers, and targeted violence. Since 2003, citizens have been legally permitted to alter their gender markers on birth certificates and national identity documents under the Alteration of Sex Description and Sex Status (Act 49). Furthermore, the law, unlike countries (e.g., China), does not strictly require full gender-affirming surgery to update official documentation; considering undergoing hormonal replacement therapy (HRT) or having a medical evaluation is legally sufficient.
United Kingdom of Great Britain and Northern Ireland	The situation around transgender people's rights in the United Kingdom has been characterised by intense public debate, legal challenges, and structural changes. After some years of a progressive government, as one of the pioneers in Europe in discussions about the rights and health of transgender people. Marked by years of activism and landmark legal decisions, being instrumental in laying the groundwork for the recognition of these identities.



The Supreme Court has been taking some controversial decisions about the rights and the healthcare of transgender people, including the fact that, since April 2025, the definition of woman in equality law is based on biological sex.

Timeline of relevant events

June 1969 The Stonewall Riots	This is a series of protests against the police that happened in New York City starting on June 18th, 1969. This first move was a riot between officers and gay rights activists outside of the Stonewall Inn, a gay bar in Greenwich Village. Then the movement escalated to a massive international gay rights movement.
July 2002 Christine Goodwin v. the United Kingdom	This verdict of the European Court of Human Rights held that the United Kingdom violated Christine Goodwin's rights to privacy and marriage. It created a precedent for similar cases in Europe and influenced policies throughout the continent.
March 2004 South Africa's Alteration of Sex Description Act	The act was approved in March 2004, and states the rights of people to institutionally change their names and gender in official documents. It marked one of the first times a nation, especially in the Global South and Africa, officially recognized the right to legal gender recognition (LGR) in a national statute.
November 2006 The Yogyakarta Principles	This is a set of international rights standards created by distinguished experts in Yogyakarta, Indonesia. They outline how existing international laws apply to issues of sexual orientation and gender identity.
June 2011 UNHRC Resolution 17/19	Adopted on June 17, 2011, the UNHRC Resolution 17/19 represents the first time the United Nations Human Rights Council passed a resolution focused on human rights violations against LGBTQIAPN+ individuals. It officially requested the Office of the UN High Commissioner for Human Rights (OHCHR) to draft a comprehensive study tracking discriminatory laws, systemic practices, and targeted acts of violence against individuals due to their SOGI.
June 2016	On June 30th, 2016, the UNHRC mandated the installation of the first Independent Expert on Sexual

Creation of the UN Independent Expert on SOGI	Orientation and Gender Identity (IE SOGI). This landmark represented the first official mechanism explicitly dedicated to combating violence and discrimination against LGBTQIAPN+ and gender-diverse individuals worldwide.
May 2019 WHO ICD-11 Depathologization	This was the 11th revision of the International Classification of Diseases according to the World Health Organization. It, for the first time, did not categorize “gender incongruence” as a disease, invalidating multiple decisions around the globe that used this as a justification for practicing oppressive and restrictive policies.
September 2021 Taiwan Landmark Gender Recognition Ruling	In 2021, a Taiwanese court decided in favor of a trans woman demanding a change in her legal documents even without presenting proof of sex-reassignment surgery. This historical decision opposed the previously existing requirement, asserting that forced bodily alterations violate a citizen's right to health and human dignity.

Fundamental Terminology

Transgender – An umbrella term for individuals whose gender identity or expression differs from the sex they were assigned at birth.

Queer – Having or relating to a gender identity or a sexuality that does not fit society's traditional ideas about gender or sexuality. It may be interpreted as an offense and is absolutely informal.

Sex Assigned at Birth – The classification of a person as male, female, or intersex based on biological anatomy and chromosomes at the time of birth.

Gender Identity – A person's deeply felt, internal, and individual experience of gender. This may or may not correspond with the sex they were assigned at birth, and it encompasses the personal sense of the body and other expressions of gender.

Cisgender – A person whose gender identity matches the sex they were assigned at birth.

Non-binary – Individuals whose gender identity does not fit into the traditional binary categories of "man" or "woman."

Intersex – An umbrella term for a natural variation in human biology where a person is born with reproductive anatomy, chromosomes, or hormones that do not fit typical binary definitions of male or female. This term refers to biological traits or gender identity.

Gender-Affirming Care – A range of social, psychological, behavioral, and medical interventions designed to support and affirm an individual's gender identity when it differs from the sex they were assigned at birth.

LGBTQIAPN+ – An acronym for diverse sexual orientations and gender identities, standing for Lesbian, Gay, Bisexual, Transgender, Queer, Intersex, Asexual, Pansexual, Non-binary, and more. Where "+" represents other existing SOGIs, and intends to include all of them.

SOGI – Sexual Orientation and Gender Identity

LGR – Legal Gender Recognition

Transphobia – The fear, hatred, aversion, or discrimination directed toward individuals who are transgender, nonbinary, or gender nonconforming.

List of Countries

Islamic Republic of Pakistan	Official UNHRC member state
French Republic	Official UNHRC member state
People's Republic of China	Official UNHRC member state
Republic of Cuba	Official UNHRC member state
Russian Federation	Observer Nation of the UNHCR
Republic of South Africa	Official UNHRC member state
United Kingdom of Great Britain and Northern Ireland	Official UNHRC member state
Federative Republic of Brazil	Official UNHRC member state
State of Qatar	Official UNHRC member state
United States of America	Observer Nation of the UNHCR
Commonwealth of Australia	Observer Nation of the UNHCR
Republic of Iraq	Official UNHRC member state
Republic of Ghana	Official UNHRC member state
Republic of Colombia	Official UNHRC member state
Japan	Official UNHRC member state
Kingdom of Spain	Official UNHRC member state
State of Kuwait	Official UNHRC member state
Kingdom of the Netherlands	Official UNHRC member state
Iceland	Official UNHRC member state
Republic of Burundi	Official UNHRC member state

Bibliography

Reference list

Anon, (2024). *Trans Rights Index & Map 2024 reveals polarisation in trans rights in Europe and Central Asia - TGEU - Transgender Europe*TGEU – Transgender Europe. [online] Available at: <https://tgeu.org/tgeus-trans-rights-index-map-2024-reveals-polarisation-in-trans-rights-in-europe-and-central-asia/>.

Balbo, G. (2026a). *Invisible and unheard: transgender men in Pakistan and silent resistance to domestic practices and state authority - Global Campus of Human Rights | Education & Research*. [online] Global Campus of Human Rights | Education & Research - An international network of universities advancing human rights education, research and global cooperation across regions. Available at: <https://www.gchumanrights.org/preparedness/invisible-and-unheard-transgender-men-in-pakistan-and-silent-resistance-to-domestic-practices-and-state-authority/>.

Balbo, G. (2026b). *Invisible and unheard: transgender men in Pakistan and silent resistance to domestic practices and state authority - Global Campus of Human Rights | Education & Research*. [online] Global Campus of Human Rights | Education & Research - An international network of universities advancing human rights education, research and global cooperation across regions. Available at: <https://www.gchumanrights.org/preparedness/invisible-and-unheard-transgender-men-in-pakistan-and-silent-resistance-to-domestic-practices-and-state-authority/>.

Britannica (2018). Stonewall Riots. In: *Encyclopædia Britannica*. [online] Available at: <https://www.britannica.com/event/Stonewall-riots>.

Cheney, K. and Gerstein, J. (2026). *Split appeals court panel protects some transgender people already in military*. [online] POLITICO. Available at: <https://www.politico.com/news/2026/06/01/transgender-military-hegseth-court-00944468>
[Accessed 9 Jun. 2026].

City, (2026). *UN experts call on UK to ensure equal rights for women, girls and transgender individuals*. [online] Jurist.org. Available at: <https://www.jurist.org/news/2026/02/un-experts-call-on-the-uk-to-ensure-equal-rights-for-women-girls-and-transgender-individuals/>.

Cubavisión Internacional (2026). *¿Cómo protege la ley cubana contra el acoso laboral a la comunidad LGBTQ+?* [online] YouTube. Available at: <https://www.youtube.com/watch?v=CkzHGeXTGbI> [Accessed 9 Jun. 2026].

dw.com. (2023). *The struggle for trans equality in Pakistan*. [online] Available at: <https://www.dw.com/en/the-struggle-for-trans-equality-in-pakistan/video-65805862> [Accessed 9 Jun. 2026].

Equaldex.com. (2017). *LGBT Rights in Beijing, China | Equaldex*. [online] Available at: <https://www.equaldex.com/region/beijing>.

European Court of Human Rights (2020). *Case of Hirsi Jamaa and Others v. Italy*. [online] Coe.int. Available at: <https://hudoc.echr.coe.int/fre#>.

Expresso Show (2021). *Breaking down transgender rights in South Africa with Zoey Black*. [online] YouTube. Available at: <https://www.youtube.com/watch?v=mDx1hoTCfjo> [Accessed 10 Jun. 2026].

Gilliam, J. (2025). *Elusive safety: what new global data reveals about gender, violence, and erasure*. [online] Washington Blade: LGBTQ News, Politics, LGBTQ Rights, Gay News. Available at: <https://www.washingtonblade.com/2025/11/25/elusive-safety-what-new-global-data-reveals-about-gender-violence-and-erasure/>.

Government Gazette REPUBLIC OF SOUTH AFRICA. (n.d.). Available at: https://www.gov.za/sites/default/files/gcis_document/201409/a49-03.pdf.

Government Gazette REPUBLIC OF SOUTH AFRICA. (n.d.). Available at: https://www.gov.za/sites/default/files/gcis_document/201409/a49-03.pdf.

Holt, A. (2020). What does trans mean and what rights do transgender people have? [online] 22 Sep. Available at: <https://www.bbc.com/news/articles/c33r5d6n635o>.

Human Rights Council Forty-first session Resolution adopted by the Human Rights Council on 12 July 2019 41/18. Mandate of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity. (2019). Available at: https://digitallibrary.un.org/naana/record/3832139/files/A_HRC_RES_41_18-EN.pdf?withWatermark=0&withMetadata=0®isterDownload=1&version=1 [Accessed 11 Jun. 2026].

Human Rights Council Nineteenth session Agenda items 2 and 8 Annual report of the United Nations High Commissioner for Human Rights and reports of the Office of the High Commissioner and the Secretary-General Follow-up and implementation of the Vienna Declaration and Programme of Action Discriminatory laws and practices and acts of violence against individuals based on their sexual orientation and gender identity Report of the United Nations High Commissioner for Human Rights * Summary. (n.d.). Available at: https://www.ohchr.org/sites/default/files/Documents/Issues/Discrimination/A.HRC.19.41_English.pdf.

Human Rights Watch. (2011). *Historic Decision at the United Nations*. [online] Available at: <https://www.hrw.org/news/2011/06/17/historic-decision-united-nations>.

Human Rights Watch. (2016). *UN Makes History on Sexual Orientation, Gender Identity*. [online] Available at: <https://www.hrw.org/news/2016/06/30/un-makes-history-sexual-orientation-gender-identity>.

Human Rights Watch. (2021a). *Human Rights Watch Submission to the South Africa Department of Home Affairs*. [online] Available at: <https://www.hrw.org/news/2021/03/18/human-rights-watch-submission-south-africa-department-home-affairs> [Accessed 10 Jun. 2026].

Human Rights Watch. (2021b). *Human Rights Watch Submission to the South Africa Department of Home Affairs*. [online] Available at: <https://www.hrw.org/news/2021/03/18/human-rights-watch-submission-south-africa-department-home-affairs> [Accessed 10 Jun. 2026].

Human Rights Watch. (2023). *Pakistan's Sindh Province Backs Transgender Rights*. [online] Available at:

<https://www.hrw.org/news/2023/04/25/pakistans-sindh-province-backs-transgender-rights>.

Human Rights Watch. (2026). *World Report 2026: Rights Trends in Cuba*. [online] Available at:

<https://www.hrw.org/world-report/2026/country-chapters/cuba>.

Human, UN. (2014). *Human rights, sexual orientation and gender identity :: resolution /: adopted by the Human Rights Council*. [online] United Nations Digital Library System.

Available at: <https://digitallibrary.un.org/record/781283?v=pdf> [Accessed 9 Jun. 2026].

Ilga.org. (2026). Available at: <https://database.ilga.org/cuba-lgbti>.

ISHR. (n.d.). *Historic decision: Council passes first-ever resolution on sexual orientation & gender identity*. [online] Available at:

<https://ishr.ch/latest-updates/historic-decision-council-passes-first-ever-resolution-sexual-orientation-gender-identity/>.

Kumar, A. (2026). *China's top court acknowledges anti-LGBTQ discrimination*. [online]

Washington Blade: LGBTQ News, Politics, LGBTQ Rights, Gay News. Available at:

<https://www.washingtonblade.com/2026/05/27/chinas-top-court-acknowledges-anti-lgbtq-discrimination/> [Accessed 9 Jun. 2026].

LII / Legal Information Institute. (2024). *Human Rights Act 1993*. [online] Available at:

https://www.law.cornell.edu/gender-justice/resource/Human_Rights_Act_1993.

McLellan, C., Yeh, P.T., Kennedy, C.E., Barré-Quick, M., Rich, A.J., Poteat, T. and Cooney, E.E.

(2026). Global Burden of Violence Against Transgender and Gender-Diverse Adults. *JAMA*

Network Open, [online] 9(1), p.e2552953.

doi:<https://doi.org/10.1001/jamanetworkopen.2025.52953>.

National Geographic. (2022). *Como historiadores estão documentando a vida de pessoas transgênero*. [online] Available at:

<https://www.nationalgeographicbrasil.com/historia/2022/06/como-historiadores-estao-documentando-a-vida-de-pessoas-transgenero>.

Nations, U. (2015). *LGBTIQ+ people* | *United Nations*. [online] United Nations. Available at: <https://www.un.org/en/lgbtiq-people>.

O'Connor, A.M., Seunik, M., Radi, B., Matthyse, L., Gable, L., Huffstetler, H.E. and Meier, B.M. (2022). Transcending the Gender Binary under International Law: Advancing Health-Related Human Rights for Trans* Populations. *Journal of Law, Medicine & Ethics*, [online] 50(3), pp.409–424. doi:<https://doi.org/10.1017/jme.2022.84>.

OHCHR. (2024a). *United Nations Resolutions on sexual orientation, gender identity and sex characteristics*. [online] Available at: <https://www.ohchr.org/en/sexual-orientation-and-gender-identity/united-nations-resolutions-sexual-orientation-gender-identity-and-sex-characteristics>.

OHCHR. (2024b). *United Nations Resolutions on sexual orientation, gender identity and sex characteristics*. [online] Available at: <https://www.ohchr.org/en/sexual-orientation-and-gender-identity/united-nations-resolutions-sexual-orientation-gender-identity-and-sex-characteristics>.

Outright International. (2025). *The Global State of LGBTIQ People's Human Rights in 2025*. [online] Available at: <https://outrightinternational.org/our-work/human-rights-research/global-state-lgbtqi-peoples-human-rights-2025>.

Outright International. (2026a). *Cuba* | *Outright International*. [online] Available at: <https://outrightinternational.org/our-work/americas/cuba> [Accessed 9 Jun. 2026].

Outright International. (2026b). *Cuba* | *Outright International*. [online] Available at: <https://outrightinternational.org/our-work/americas/cuba>.

outrightinternational.org. (n.d.). *South Africa* | *Outright International*. [online] Available at: <https://outrightinternational.org/our-work/sub-saharan-africa/south-africa>.

outrightinternational.org. (n.d.). *South Africa* | *Outright International*. [online] Available at: <https://outrightinternational.org/our-work/sub-saharan-africa/south-africa>.

Pakistancode.gov.pk. (2016). *Pakistan Code*. [online] Available at: <https://pakistancode.gov.pk/>.

Pathfinders. (n.d.). *Cuba's family code recognizes diversity in families expanding rights for children, women, and LGBTQI+ people*. [online] Available at: <https://www.sdg16.plus/policies/cubas-family-code-recognizes-diversity-in-families-expanding-rights-for-children-women-and-lgbtqi-people/>.

Quéré, M. (2022). 'Second-Class Citizens': The Mobilization of the French Homosexual Movement for the 'Right to Difference' (1979–1982). *Journal of History*, 57(3), pp.362–384. doi:<https://doi.org/10.3138/jh-57-3-2022-0010>.

Riedel, S. (2025). *Cuba Will Now Allow Trans People to Change Gender Markers Without Bottom Surgery*. [online] Them. Available at: <https://www.them.us/story/cuba-gender-recognition-surgical-requirement>.

Rios, A. and Fernandez, A. (2025). Cuba trans community sees glimmer of hope in proposed legislation. *Reuters*. [online] 30 Jun. Available at: <https://www.reuters.com/world/americas/cuba-trans-community-sees-glimmer-hope-proposed-legislation-2025-06-30/>.

Rocha, A.P. (2025). *Cuba approves new law allowing changes to gender identity in documents*. [online] Brasil de Fato. Available at: <https://www.brasildefato.com.br/2025/07/28/cuba-approves-new-law-allowing-changes-to-gender-identity-in-documents/>.

Team, R. (2025). *Transgender rights in China legal barriers and social stigma*. [online] Washington Centre for Human Rights. Available at: <https://washingtoncentre.org/transgender-rights-in-china-navigating-legal-barriers-and-social-stigma/>.

thisisloyal.com, L. | (2021). *Public Opinion of Transgender Rights in China - Williams Institute* %. [online] Williams Institute. Available at: <https://williamsinstitute.law.ucla.edu/publications/opinion-trans-rights-china/>.

thisisloyal.com, L. | (n.d.). *Public Opinion of Transgender Rights in South Africa*. [online] Williams Institute. Available at:
<https://williamsinstitute.law.ucla.edu/publications/opinion-trans-rights-south-africa/>.

Trans Legislation Tracker (2025). *2025 anti-trans bills: Trans legislation tracker*. [online] Trans Legislation Tracker. Available at: <https://translegislation.com/>.

TRANSGENDER - (THE NEED FOR MAINSTREAMING) INTERIM REPORT FROM: THE NATIONAL COMMISSION FOR HUMAN RIGHTS. (n.d.). Available at:
<https://nchr.gov.pk/wp-content/uploads/2023/09/Report-on-Transgender-Persons-A-Need-for-Mainstreaming-2017.pdf>.

Ucsd.edu. (2025). *What is Gender Affirming Care?* [online] Available at:
<https://stride.ucsd.edu/about/what-is-gender-affirming-care.html>.

Un.org. (2025). *Where can I find UN documents related to lesbian, gay, bisexual, transgender, and intersex (LGBTI) issues at the United Nations? - Ask DAG!* [online] Available at:
<https://ask.un.org/faq/387060> [Accessed 27 Apr. 2025].

UNHCR US. (n.d.). *LGBTIQ+ Claims*. [online] Available at:
<https://www.unhcr.org/us/what-we-do/u-s-asylum-resources/lgbtiq-claims>.

UNHCR. (2024a). *LGBTIQ+ persons | UNHCR*. [online] Available at:
<https://www.unhcr.org/what-we-do/protect-human-rights/safeguarding-individuals/lgbtiq-person>.

UNHCR. (2024b). *Protecting lesbian, gay, bisexual, transgender, intersex and queer (LGBTIQ+) persons*. [online] Available at:
<https://emergency.unhcr.org/protection/persons-risk/protecting-lesbian-gay-bisexual-transgender-intersex-and-queer-lgbtiq-persons>.

United Nations (2017). *UN Free & Equal*. [online] UN Free & Equal. Available at:
<https://www.unfe.org/>.

United Nations Human Rights (2022). *The Struggle of Trans and gender-diverse Persons*. [online] OHCHR. Available at:

<https://www.ohchr.org/en/special-procedures/ie-sexual-orientation-and-gender-identity/struggle-trans-and-gender-diverse-persons>.

Wilk, M. (2022). *Progressive Policy Versus Conservative Norms: A Paradox of LGBTQ+ Rights in Cuba*. [online] Journal of Public and International Affairs. Available at: <https://jpia.princeton.edu/news/progressive-policy-versus-conservative-norms-paradox-lgbtq-rights-cuba>.

Worth, H., Jun, J., McMillan, K., Chunyan, S., Xiaoxing, F., Yuping, Z., Zhao, R., Kelly-Hanku, A., Jia, C. and Youchun, Z. (2018). 'There was no mercy at all': Hooliganism, homosexuality and the opening-up of China. *International Sociology*, 34(1), pp.38–57.
doi:<https://doi.org/10.1177/0268580918812265>.

www.preventionweb.net. (2023). *Pakistan's trans community battles climate catastrophe and exclusion* | *PreventionWeb*. [online] Available at: <https://www.preventionweb.net/news/pakistans-trans-community-battles-climate-catastrophe-and-exclusion>.